
PRIVY COUNCIL

OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] REALM-PC 10

IN THE MATTER OF

On referral by the Standing Committee, may the Privy Council give the twenty-five founding Acts a deeper reading for one class of structural gap: whether each provides a working route by which subordinate legislation (statutory instruments) can be made, amended, repealed and enforced under the Acts. The Founder's standing view, which the Council is asked to apply, is that the twenty-five Acts are a broad enabling base and that the Standing Committee should largely give the realm its operating detail by statutory instrument under those Acts, not by minting a fresh primary statute for each subject. The motivating example: the Security and Integrity Act 2026 (Bill 21) needs an instrument by which the security rules and procedure of the realm's server estate (the local development host and the public production hosts, applying to servers local and public) are secured.

Before:

Coade J, Goffe J, Sumberly J

Date: **6 June 2026**

REQUEST FOR RULING

JUDGMENT

THE READING

A. THE REFERENCE AND THE STANDING VIEW

1. The Standing Committee refers a systemic question. The Founder's standing view is that the twenty-five founding
2. Acts (Royal Assent, 2026-06-06) are a broad base: the Committee should largely give the realm its operating detail
3. by subordinate legislation made, amended, repealed and enforced under those Acts, not by minting fresh primary
4. statutes for each subject. The motivating example is concrete: the Security and Integrity Act 2026 (Bill 21) needs
5. an instrument by which the security rules and procedure of the realm's server estate (the local development host
6. and the public production hosts) are secured.
7. We read all twenty-five Acts for two things: an express enabling power to make instruments, and a full
8. make/amend/repeal/enforce lifecycle. The finding is stark. Express enabling power is present in one Act (Bill 14,
9. Delegated Legislative Authority). A working lifecycle is present in none: Bill 14, the strongest, has "make"
10. (Part IV) and "kill" (s. 21, s. 23) but a missing, undefined "amend" (s. 27(a) outsources it by bare
11. cross-reference to Bill 10 and never sets it out). Bill 24 borrows Bill 14's power but coins none of its own and
12. carries an orphaned-definition defect on its central nouns.

B. THE SYSTEMIC FINDING

13. The realm possesses a delegated-legislation theory but has not instantiated a uniform statutory-instrument route.
14. Bill 14 confers a genuine, well-guarded delegated power and a closed subordinate estate (practice directions,
15. codes of practice, consolidations, revisions, schedules, forms: s. 11(1)). It firewalls capability from authority
16. (s. 9), bars Henry VIII amendment (s. 12), carves out entrenched and guardrail subject-matter (s. 13), fails

17. closed (s. 15), and preserves Sovereign override and judicial review on its face (s. 20, s. 21). That is the
18. constitutional ceiling, and it is sound.
19. But three gaps mean no Act can presently carry a substantive operational instrument cleanly to enactment,
20. amendment, repeal and enforcement:
1. No general "regulations / binding rules" tier. Bill 14 s. 11(1) closes the estate to a list that does not
2. include a category of instrument with binding operative effect on a subject-matter (a "regulation" in the
3. ordinary sense). The Bill 21 server-security ruleset is a substantive, binding operational code. It is unclear
4. whether it fits "code of practice" or is an out-of-scope free-standing regulation that the closed list leaves
5. homeless. The Committee's principal instrument has no certain landing tier.
2. No instantiated "amend" procedure. Bill 14 has repeal/supersession (s. 21(3), s. 23(2)) and
3. review-narrowing (s. 30(2)), but the ordinary amendment of a live instrument is outsourced to Bill 10 by one
4. cross-reference (s. 27(a)) and never specified: no minor/major distinction, no re-publication or re-objection
5. requirement, no rule that an amending instrument re-runs the s. 14 objection window. The lifecycle is
6. two-thirds built.
3. No citation slot and no enforcement receiver. Bill 16 s. 5 defines "instrument" as only an Act of the
4. Realm or a judgment, and s. 22 pushes all subordinate detail to Bill 14. The Act that governs how the realm
5. cites law thus has no grammar slot for a statutory instrument, and no statute status in s. 15 fits "in force /
6. amended / repealed" for an SI specifically. Bill 13, the enforcement engine, mentions subordinate instruments
7. only restrictively (s. 5(4): an Office instrument that imposes punishment is void) and provides no clause

8. receiving a lawful instrument into its three-mechanism enforcement primitive (s. 6). And Bill 21 itself mints
9. no enabling power: its security rules are asserted to "ride the existing substrate" (s. 13), presuming rules
10. that do not yet have a lawful author or version.
11. Across the other Acts the pattern is consistent and deliberate: operational detail that should live in amendable
12. instruments is hard-coded on the face of primary statutes (Bills 8, 9, 17, 18, 20, 22, 23), or deferred to
13. further primary Acts (Bill 6 s. 4 / s. 5 / s. 8 / s. 21). That is the precise opposite of the Founder's view; it
14. bakes a "new statute per subject" posture into the seams.

C. THE HOLDING

15. We hold: the realm presently lacks an instantiated, uniform route by which statutory instruments are made,
16. amended, repealed and enforced under the founding Acts. The delegated power exists (Bill 14) but is incomplete as
17. a lifecycle and is unreceived by the citation (Bill 16) and enforcement (Bill 13) machinery; no Act other than
18. Bill 14 carries even an enabling clause, and Bill 14's own estate has no certain tier for a binding operational
19. regulation.
20. This is a gap in instantiation, not a constitutional defect. The settlement chose delegation correctly; it simply
21. did not finish wiring it. The cure completes the constitutional design rather than altering it.

D. THE RECOMMENDATION

22. We recommend a single Statutory Instruments framework that every Act draws on by a short enabling clause, sited
23. best as an amendment to Bill 14 (the Delegated Legislative Authority Act), which already owns the delegated
24. theory, the firewall, the carve-out, the publication hook and the override. A fresh stand-alone Statutory

25. Instruments Act is the acceptable alternative if the Committee prefers a clean vehicle; either way the framework
26. must be one route, not a per-Act improvisation. Its load-bearing additions are: (i) a new estate category for
27. regulations of binding operative effect below the Acts and case law; (ii) a stated amendment procedure that
28. re-runs publication and the objection window; (iii) a citation slot and SI status vocabulary in Bill 16; and
29. (iv) an enforcement-receiver clause in Bill 13 routing a lawful SI to the three mechanisms (s. 6) and the
30. deterministic gate (s. 19(5)). The full outline is the Schedule to this reading.

E. THE COMMITTEE'S REMIT (GIVING EFFECT TO THE FOUNDER'S VIEW)

31. We give effect to the standing view as a rule of practice: the default legislative act of the Standing Committee
32. is to make and amend statutory instruments under the existing Acts; a fresh primary statute is exceptional,
33. reserved for genuinely new primary subject-matter, for anything within the Bill 14 s. 13 carve-out, and for
34. anything that would amend an Act or an entrenched article (which an instrument can never do: Bill 14 s. 10,
35. s. 12). This honours the broad-base design while keeping the propose-not-enact firewall intact.

F. PER-ACT ENABLING-POWER TABLE (THE CURE, BY ACT)

36. | Act | Present state | What the framework adds |
37. |---|---|---|
38. | Bill 14 (Delegated Authority) | Only enabling power; estate closed (s. 11); no "amend" (s. 27(a)) | Home of the framework: add binding-regulation estate tier; instantiate the amend procedure; the generic enabling-clause template |
39. | Bill 13 (Enforcement) | Restrictive only (s. 5(4)); no receiver | Enforcement-receiver clause: a lawful SI routes to the three mechanisms (s. 6) and the s. 19(5) gate |
40. | Bill 16 (Citations) | "instrument" = Act/judgment only (s. 5); no SI grammar | SI citation slot + SI status vocabulary (made / in-force / amended / revoked / spent) |

41. | Bill 15 (Interpretation) | Delegated law assigned out (s. 4(3)) | Default definition of "statutory instrument" pinned by reference to Bill 14 |
42. | Bill 21 (Security) | No enabling power; rules "ride substrate" (s. 13) | Short enabling clause naming the section as parent authority |
43. | Bills 5, 6, 7, 8, 17, 18, 22, 23 | Detail hard-coded or deferred to fresh statutes | Short enabling clause per Act, drawing on the one framework |

G. THE WORKED EXEMPLAR

44. The exemplar (the Security and Integrity (Server Estate) Instrument under Bill 21, for the local-development and
45. public-production estate) is set out in full below. In short: it would be a regulation of binding operative effect in the new estate
46. tier, parented to Bill 21 by the new enabling clause, made by the Ministry of Security and Integrity (on the
47. Bill 14 s. 8 authorisation roll, seated under Bill 5 s. 14(2)), published and cited under Bill 16, enforced
48. through Bill 13's deterministic gate and watchdog (the substrate Bill 21 s. 13 already names), amendable by the
49. new s. 27 procedure, and repealable as a single status transition. It secures the server rules without minting any
50. fresh coercive power, staying wholly within Bill 21's custodial settlement.

H. DISPOSITION

51. We report the systemic finding and recommend the single Statutory Instruments framework, sited in an amendment to
52. Bill 14 (alternative: a fresh Statutory Instruments Act), with the four wiring additions (estate tier, amend
53. procedure, Bill 16 citation slot, Bill 13 receiver) and the short per-Act enabling clauses. The Committee's remit
54. is recorded: it largely makes and amends SIs; fresh statutes are exceptional. The exemplar is set out as the first
55. instrument the framework should carry.
56. On escalation: we hold this does not require a leapfrog to the Supreme Court. It completes, rather than amends,
57. the constitutional settlement: it adds no self-commencing supreme law, touches no entrenched article, and stays

58. within the Bill 14 ceiling the Council already certified. The Supreme Court reserve on Bill 14 was the narrow
59. question whether any self-commencing instrument relaxes the s. 9 / s. 2 enacting monopoly; building the lifecycle
60. the Council already endorsed does not reopen it. The framework is enacted by the ordinary route (Committee draft,
61. Sovereign Royal Assent). Should the Committee instead wish a punitive or coercive security SI (a sanction or
62. exclusionary detention), that is outside this framework and outside the Committee's drafting power: it routes by
63. Bill 21 and Bill 13 s. 19 to a leapfrog and a Sovereign amendment, exactly as those Acts already provide. For the
64. framework itself, ordinary assent suffices, with a Sovereign consultation noted (not required) to affirm the
65. binding-regulation tier as lawful subordinate law within the Bill 14 ceiling.

SCHEDULE 1 - THE RECOMMENDED STATUTORY INSTRUMENTS

FRAMEWORK (OUTLINE)

66. Sited best as an amendment to Bill 14 (Delegated Legislative Authority Act), which already owns the delegated
67. theory, the propose-not-enact firewall (s. 9), the carve-out (s. 13), the publication hook (s. 18) and the
68. Sovereign override (s. 21). A fresh stand-alone Statutory Instruments Act is the acceptable alternative; in either
69. case it must be one uniform route every Act draws on by a short enabling clause, never a per-Act improvisation.
1. How an SI is made.
2. - (a) Enabling power. Each parent Act gains a short enabling clause: "The [named office] may by statutory
3. instrument make provision for the purposes of [section] of this Act." The clause names the parent authority and
4. enabling provision (Bill 14 s. 6(i)). No free-floating power: the maker must be on the Bill 14 s. 8
5. authorisation roll (a Bill 5-seated office, a court, or a Bill 6 / 17 agent).

6. - (b) Made-by office. The Standing Committee or a named Ministry drafts and the s. 8 roll body makes;
7. capability is not authority (Bill 14 s. 9). The instrument carries on its face: parent Act + enabling section,
8. made-by office, scope, reasons, commencement, objection window.
9. - (c) New estate tier. Amend Bill 14 s. 11(1) to add "regulations of binding operative effect on a stated
10. subject-matter, sitting strictly below the Acts of the Realm and below case law" to the closed estate, alongside
11. the existing practice directions, codes, consolidations, revisions, schedules and forms. This is the missing
12. tier the Bill 21 server-security ruleset needs.
2. Numbered / cited (per Bill 16). Amend Bill 16 s. 5 (which today defines "instrument" as only an Act or
3. judgment) to add a statutory-instrument class, and add an SI grammar slot to the s. 7 citation table, e.g.
4. [YEAR] REALM-SI N, deterministically minted by the citation engine (cli/lib/citation.js, Bill 16 s. 8) and
5. never chosen on a turn. Add an SI status vocabulary to Bill 16 s. 15 (made / in-force / amended / revoked /
6. spent), closed and gate-checked.
3. Registered. In statutes/ (the enacting archive) under a subordinate-instrument register, and in the
4. universal ledger / citator (ministry-of-justice/ledger/INDEX.md), as a derived, pointer-only projection: the
5. committed instrument markdown is canonical (Bill 14 s. 18(3), [2026] REALM-PC 4). Minting the citation and writing
6. the register row are the same atomic act, enforced by the s. 19(5) deterministic citation-integrity gate (Bill 14
7. s. 18(2)).
4. Procedure (make).
5. - (a) Negative (default): published in full, real-clock objection window (Bill 14 s. 14); commences

6. automatically into the subordinate estate on lapse with no valid objection; a single valid objection halts it
7. and forces affirmative scrutiny (s. 16). Fails closed on silence / doubt / carve-out (s. 15).
8. - (b) Affirmative: required where the parent Act so states; no commencement until the competent committee or
9. court confirms.
10. - (c) Emergency: only through the Bill 9 Declaration cage (closed trigger, form gate, hard sunset); the
11. framework mints no fresh crisis power.
5. Amended (the missing limb - instantiate it; do not leave it to Bill 14 s. 27(a)'s bare cross-reference). Add
6. an express amendment procedure: an amending instrument is itself an SI made by the same parent authority; it must
7. re-publish under s. 18 and re-run the s. 14 objection window; a minor / technical correction (text-faithful,
8. no change of legal meaning, Bill 14 s. 24) may use a short-form corrigendum that still publishes but need not
9. re-run the full window. No amendment may expand the parent Act or reach the s. 13 carve-out (anti-Henry-VIII,
10. s. 12).
6. Repealed. Already covered by Bill 14 and carried forward: repeal-before-add / anti-accretion on
7. consolidation (s. 23(2)); override / revocation as a single deterministic status transition in the register
8. (SUPERSEDED / REPEALED / VOID, s. 21(3)); at-will Sovereign override (s. 21(1)); self-executing lapse on hard
9. sunset (s. 14(e)).
7. Enforced (via Bill 13 - add the missing receiver). Bill 13 today mentions SIs only restrictively
8. (s. 5(4)). Add an enforcement-receiver clause: a lawful, published SI routes into the three-mechanisms-and-no-fourth
9. primitive (s. 6): a deterministic fail-closed gate (s. 19(5)) for machine-checkable rules, a soft fail-open

10. watchdog (s. 19(4)) for reminders, and the court for adjudication; every fail-closed gate exposes an audited
11. break-glass (Bill 13 s. 7) so an SI can never brick the realm. An SI may never in substance impose punishment
12. (s. 5(4) preserved); its only consequence on breach is a fresh restorable s. 6 matter.
8. Vires / review / liability (carried from Bill 14). Reviewable for vires and form on the CASE-LAW s. 20
9. model (Bill 14 s. 20); void to the extent of conflict with any higher tier (s. 17); liability for a defective
10. instrument on the parent authority, not the drafting agent (s. 28); standing duty to challenge an ultra vires
11. instrument (s. 22).
12. Vehicle choice: amend Bill 14 (preferred - completes the Act that already owns the theory and avoids a second
13. delegated-legislation statute, honouring the single-source / no-rival-taxonomy discipline of Bill 14 s. 5 and
14. Bill 15 s. 10). A fresh Statutory Instruments Act is competent but should then expressly cross-refer to and not
15. duplicate Bill 14's firewall, carve-out and override.

SCHEDULE 2 - THE STANDING COMMITTEE'S REMIT (RECORDED)

16. Giving effect to the Founder's standing view: the default legislative act of the Standing Committee is to make
17. and amend statutory instruments (subordinate legislation) under the twenty-five founding Acts, which are a broad
18. enabling base. A fresh primary statute is exceptional, reserved to genuinely new primary subject-matter, to
19. anything within the Bill 14 s. 13 carve-out (entrenched / constitutional articles, rights and due process,
20. judicial independence, agent status / memory, sanctions / enforcement), and to anything that would amend an Act or
21. an entrenched article (which no instrument may ever do: Bill 14 s. 10, s. 12; anti-Henry-VIII). Within those
22. limits the Committee fills out operational detail by SI parented to an existing Act under the single Statutory

23. Instruments framework, published, cited, amendable, repealable and enforced as set out, never by minting a new Act
24. per subject. The propose-not-enact firewall (Bill 14 s. 9) and the non-delegable enacting monopoly (CASE-LAW s. 9,
25. s. 2) remain intact: the Committee proposes and makes subordinate law; it never enacts primary or supreme law.

SCHEDULE 3 - THE WORKED EXEMPLAR: THE SECURITY AND INTEGRITY (SERVER ESTATE) INSTRUMENT

26. Under Bill 21 (worked exemplar). Provisional citation under the new Bill 16 slot, e.g. [2026] REALM-SI 1.
27. What it secures (the local-development + public-production estate). A single binding-operative-effect regulation
28. setting the security rules and procedure of the realm's server estate, applying to servers local and public:
29. - Scope: the local development host and the public production hosts, and any future server of the realm.
30. - Rules: SSH and access controls; firewall posture (e.g. the UFW port-5201 cable-only rule as a worked
31. instance, with concrete port and topology facts sealed); secrets / credential handling; the commit / publication boundary (Bill 21 s. 5 "no PKI" design
32. baseline as a rule the SI can now version rather than hard-code); per-host hardening baselines; tamper-evident
33. integrity controls keyed to Bill 21's definitions of corruption / compromise / integrity (s. 1); a
34. deterministic, machine-checkable conformance check.
35. - Procedure: the detect-classify-refer cycle of the Ministry of Security and Integrity (Bill 21 s. 5),
36. incident classification as non-operative field-presence (s. 3), and the contemporaneous non-derogable record
37. (s. 11).
38. How it is made under the framework:
39. - Parent authority: Bill 21, via the new short enabling clause added to it ("the Ministry of Security and

40. Integrity may by statutory instrument make provision for the security rules and procedure of the server estate

41. for the purposes of this Act"). This cures Bill 21's present defect (no enabling power; rules merely "ride the

42. existing substrate", s. 13).

43. - Made-by office: the Ministry of Security and Integrity, constituted under Bill 5 s. 14(2) (the

44. executive-internal "Security" grouping) and placed on the Bill 14 s. 8 authorisation roll so a gate can verify

45. the maker deterministically (no self-claim).

46. - Estate tier: a "regulation of binding operative effect" in the new Bill 14 s. 11 tier

47. - the substantive

48. server ruleset is binding, so it needs this tier, not merely a "code of practice".

49. - Published + cited: committed, hash-pinned, minted [2026] REALM-SI 1 by the citation engine, register row

50. written atomically under the s. 19(5) gate (Bill 14 s. 18; Bill 16 amended).

51. How it is enforced (via Bill 13, three mechanisms, no fourth):

52. - The machine-checkable rules (firewall posture, port rules, conformance baseline) run on the deterministic

53. fail-closed pre-commit / CI gate (s. 19(5)); the soft watchdog (s. 19(4)) reminds; the court adjudicates any

54. disputed breach. Every fail-closed control exposes an audited break-glass (Bill 13 s. 7) so a security gate can

55. never brick the estate. This is exactly the substrate Bill 21 s. 13 already names; the SI now supplies the

56. authored, versioned rules the substrate enforces.

57. - It mints no fresh coercive power: containment, if any, fires only through the incorporated Bill 6 ss. 14-16

58. (protective) and Bill 9 s. 10 (emergency) powers (Bill 21 s. 7), pause-and-contain only. The SI stays wholly

59. within Bill 21's custodial settlement; any punitive reading is void.

How it is amended / repealed:

60. - Amended by an amending SI made by the same Ministry, re-published and re-running the objection window (new
61. framework limb 5); a minor hardening-baseline correction may use the short-form corrigendum (text-faithful, no
62. change of meaning).
63. - Repealed or superseded as a single status transition (SUPERSEDED / REPEALED / VOID, Bill 14 s. 21(3)); at-will
64. Sovereign override preserved; hard sunset / recurring-review keeps a standing security rule from ossifying
65. (Bill 21 s. 9 mandatory recurring review, ported).
66. Result: the Founder's motivating need is met - the server estate's security rules and procedure are secured by
67. a proper statutory instrument that is made, cited, enforced, amended and repealed under the framework, parented to
68. Bill 21, without any new primary statute and without minting any new coercive power.

The realm possesses a delegated-legislation power but has not instantiated a uniform statutory-instrument route. Express enabling power is present in one Act only (Bill 14, Delegated Legislative Authority); a full make/amend/repeal/enforce lifecycle is present in none. This is a gap in instantiation, not a constitutional defect: the settlement chose delegation correctly (Bill 14 firewalls capability from authority at s. 9, bars Henry VIII amendment at s. 12, carves out entrenched subject-matter at s. 13, fails closed at s. 15, preserves Sovereign override and judicial review at ss. 20-21) and merely did not finish wiring it. The cure is a single Statutory Instruments framework that every Act draws on by a short enabling clause, sited best as an amendment to Bill 14, with four load-bearing additions: (i) a new estate tier for regulations of binding operative effect below the Acts and case law (Bill 14 s. 11(1)'s closed list presently has no certain home for a binding operational ruleset such as the server-security code); (ii) an instantiated amendment procedure that re-publishes and re-runs the objection window (Bill 14 s. 27(a) today outsources amendment by bare cross-reference and never sets it out); (iii) a citation slot and SI status vocabulary in Bill 16 (s. 5 today defines "instrument" as only an Act or a judgment); and (iv) an enforcement-receiver clause in Bill 13 routing a lawful instrument to the three-mechanisms primitive (s. 6) and the deterministic gate (s. 19(5)). The cure completes rather than amends the constitutional settlement: it adds no self-commencing supreme law, touches no entrenched article, and stays within the Bill 14 ceiling the Council already certified - so it needs no leapfrog to the Supreme Court and is enacted by the ordinary route (Committee draft, Sovereign Royal Assent). Giving effect to the Founder's view as a rule of practice: the default legislative act of the Standing Committee is to make and amend statutory instruments under the existing Acts; a fresh primary statute is exceptional, reserved to genuinely new primary subject-matter, to anything within the Bill 14 s. 13 carve-out, and to anything that would amend an Act or an entrenched article (which no instrument may ever do). The propose-not-enact firewall (Bill 14 s. 9) and the non-delegable enacting monopoly (CASE-LAW s. 9, s. 2) remain intact.

GOOD-LAW

Citation: [2026] REALM-PC 10

PROGRESSION *Constitutional matter. Appeal lies by automatic leapfrog certificate (s. 13, s. 20), bypassing the Court of Appeal, direct to the Supreme Court.*

SUMMARY

The Standing Committee asked the Privy Council to read all 25 Acts for one gap: is there a working way to make, change, scrap and enforce the small operational rules (statutory instruments) under the big Acts? The answer: the realm has the **power** to delegate (Bill 14) but never finished building the **machinery**. Only one Act can even make an instrument, and none has a full make/amend/repeal/enforce lifecycle. The fix is one shared Statutory Instruments framework, best added as an amendment to Bill 14, that every Act plugs into with a one-line "may make regulations" clause. It needs four bolts tightened: a proper tier for binding rules, a real "amend" procedure, a citation slot in Bill 16, and an enforcement hook in Bill 13. Crucially this **completes** the constitution rather than changing it, so it does not go up to the Supreme Court - the Committee drafts it and the Sovereign signs it the ordinary way. And the headline reframe is now law of practice: the Committee's normal job is to make and amend instruments under the existing Acts; writing a whole new Act is the rare exception. Worked example included: the Security and Integrity (Server Estate) Instrument that would secure the local-development and public-production servers, made under Bill 21 and enforced by the existing gate - no new statute, no new coercive power.

APPEAL ROUTE

Privy Council reading at constitutional first instance. Appeal lies by automatic leapfrog certificate (s. 13, s. 20), bypassing the Court of Appeal, direct to the Supreme Court - but the Council holds this reading raises no point warranting a leapfrog: it completes rather than amends the settlement.

Handed down by the PRIVY COUNCIL of the Vibe Justice System (VJS). 6 June 2026.